

1. Legal Strength Rating

High – The grievance contains several legally valid arguments: BESCOM's statutory duty to supply electricity without unreasonable interruption, the documented complaint filed on 3 March 2026, and the clear statutory avenues for redress (Consumer Protection Act, 2019 and Electricity Act, 2003). These form a solid basis for a breach of contract and consumer rights claim. Although the loss of income and alleged misleading conduct arguments are weaker, they do not diminish the overall strength of the case.

2. Confidence Meter

78 / 100 – Confidence is high because the core breach of service is well supported by statutory provisions and a contemporaneous complaint. The score is moderated by the current lack of documentary proof of actual income loss and of BESCOM's specific assurances, which are needed to maximise compensation.

3. Draft Complaint

To

The Hon'ble President,
[Name of the District Consumer Disputes Redressal Commission]
[Address of the Commission]

Subject: Complaint under the Consumer Protection Act, 2019 and the Electricity Act, 2003 against Bangalore Electricity Supply Company (BESCOM) for breach of service, loss of income and demand for compensation.

Complainant:

Ravi Kumar
Flat No. 1203, XYZ Apartments,
Whitefield, Bengaluru – 560066
Mobile: [Your Mobile No.]
Email: [Your Email]

Opposite Party:

Bangalore Electricity Supply Company (BESCOM)
Head Office, BESCOM House,
Bangalore – 560001

Brief Facts:

1. I am a residential consumer of electricity supplied by BESCOM.
2. On **3 March 2026**, I lodged a written complaint (Complaint No. 456789) with BESCOM reporting a complete power outage at my premises. A copy of the complaint and the acknowledgment receipt are annexed.
3. Despite the complaint, BESCOM failed to restore electricity for **seven consecutive days** (3 March – 9 March 2026).
4. During this period I was unable to perform my work from home duties, resulting in a **loss of income amounting to INR [amount]** (see annexure II).
5. BESCOM's representatives assured me that the issue would be resolved "within 24 hours", but no remedial action was taken. No further communication was received from BESCOM.

Legal Grounds:

- a. **Breach of statutory duty** – Electricity Act, 2003 Sec. 73 and Karnataka Electricity Supply Act, 2005 Sec. 4 obligate the licensee to supply electricity without unreasonable interruption. A seven day outage is unreasonable and amounts to a breach of contract (Indian Contract Act, 1872 Sec. 73).
- b. **Violation of consumer rights** – Consumer Protection Act, 2019 Sec. 2(1)(r) (unfair trade practice) and Sec. 17 (relief for consumer) because BESCOM failed to provide the service promised and gave false assurances.
- c. **Right to redress** – CPA Sec. 1214 and Electricity Act Sec. 86 empower the consumer to approach the consumer forum for compensation and corrective orders.

Relief Sought:

1. **Direction to BESCOM** to restore uninterrupted electricity supply at the earliest.
2. **Compensation** of INR [amount] for loss of income suffered during the outage, with interest as per the prevailing bank rate.
3. **Penalty** under the Electricity Act, 2003 Sec. 73 for failure to supply electricity within a reasonable time.
4. **Costs of the proceedings.**

Verification:

I, Ravi Kumar, do hereby verify that the contents of this complaint are true to the best of my knowledge and belief and that no material fact has been concealed.

Place: Bengaluru

Date: [Insert Date]

Signature

Ravi Kumar

4. Applicable Laws (India)

- Electricity Act, 2003 – Sec. 73 (obligation to supply electricity)
- Karnataka Electricity Supply Act, 2005 – Sec. 4 (consumer grievance)
- Indian Contract Act, 1872 – Sec. 73 (damages for breach of contract)
- Consumer Protection Act, 2019 – Sec. 2(1)(r) (definition of unfair trade practice)
- Consumer Protection Act, 2019 – Sec. 12 (right to be heard)
- Consumer Protection Act, 2019 – Sec. 14 (complaint to consumer forum)
- Consumer Protection Act, 2019 – Sec. 17 (relief for consumer)
- Consumer Protection Act, 2019 – Sec. 19 (relief against unfair trade practice)
- Electricity Act, 2003 – Sec. 86 (dispute resolution by consumer forum)
- Karnataka Electricity Regulatory Commission Act, 2005 – Sec. 13 (consumer complaints to KERC)

5. Identified Weaknesses

- No documentary proof (invoices, bank statements) of the exact income loss incurred.
- Absence of written evidence of BESCOM's "assurances of action" (e.g., email, SMS, or recorded call).
- No prior escalation (e.g., follow-up letters or visits) after the initial complaint, which could strengthen the claim of negligence.
- Lack of a formal service-level agreement (SLA) copy showing the stipulated restoration time.

6. How to Strengthen Your Case

1. **Collect Income Evidence** – Gather all invoices, client contracts, payment receipts, and bank statements for the period 3 – 9 March 2026 to demonstrate the exact loss of earnings.
2. **Obtain BESCOM's Assurance Records** – Request a copy of any email, SMS, call log, or written note where BESCOM promised restoration within a specific time. Submit a Right to Information (RTI) application if necessary.
3. **Document the Outage** – Take photographs of the non-functioning meters, record the dates and times of the outage, and obtain a statement from a neighbour confirming the same.
4. **Send a Legal Notice** – Before filing the complaint, send a formal legal notice to BESCOM demanding restoration and compensation within a reasonable period (e.g., 15 days). Keep a proof of delivery.
5. **Maintain a Chronology** – Prepare a detailed timeline of all communications (complaint filing, follow-ups, visits, phone calls) with dates and reference numbers.
6. **Secure Expert Opinion** – If possible, obtain a certified loss of income calculation from an accountant or a chartered professional.

7. File the Complaint Promptly – Submit the complaint within the statutory limitation period (generally two years from the date of cause of action).

7. Evidence Checklist

- ■ Copy of the written complaint dated 3 March 2026 (Complaint No. 456789) and acknowledgment receipt.
- ■ Power outage log (meter readings, photographs, neighbour statements).
- ■ Electricity bills for the months preceding and succeeding the outage.
- ■ Invoices/receipts of work performed from home during the outage period.
- ■ Bank statements showing non-receipt of payments for the same period.
- ■ Any email, SMS, or recorded call from BESCO promising prompt restoration.
- ■ Copies of follow-up letters or emails sent to BESCO after the initial complaint.
- ■ Legal notice (if sent) and proof of delivery.
- ■ Expert/ accountant's calculation of loss of income (if obtained).
- ■ Any relevant sections of the service-level agreement or tariff order.

Prepare the above documents in the order listed and attach them as annexures to the complaint. This will substantially improve the likelihood of a favorable order from the consumer forum.